

S.Sureshkumar vs Sasikala on 9 February, 2021

Author: S.M.Subramaniam

Bench: S.M.Subramaniam

C.M.S.A.No.

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 09.02.2021

CORAM

THE HON'BLE MR.JUSTICE S.M.SUBRAMANIAM

C.M.S.A.No.9 of 2019

S.Sureshkumar

...Appell

Vs.

Sasikala

... Respo

Prayer: Civil Miscellaneous Second Appeal filed under Section 28(1) Hindu Marriage Act r/w. Section 100 of C.P.C., against the fair and decreetal order dated 22.11.2018 made in C.M.A.No.12 of 2018 on the file of the learned Additional District (Fast Track) Court, Mettur confirming the fair and decreetal order dated 30.07.2018 made in H.M.O.P.No.103 of 2015 on the file of the learned Sub Court, Mettur

For Appellant : Mr.N.Manokaran

For Respondent : NA

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C.M.S.A

JUDGMENT

The fair and decreetal order dated 22.11.2018 made in C.M.A.No.12 of 2018, confirming the fair and decreetal order dated 30.07.2018 made in H.M.O.P.No.103 of 2015, is under challenge in the present civil miscellaneous second appeal.

2. The substantial questions of law raised in the appeal on hand reads as under:

a. Whether the attempt to sexual non cooperation, failure to do matrimonial obligation, disrespect shown, frustration etc; would amount “cruelty” under Section 13(1) (ia) of the Hindu Marriage Act, 1955, if so, whether the appellant /husband has made out a case to get a decree for divorce on the ground of cruelty?

b. Whether the Courts, below have committed an error in refusing to dissolve the marriage under Sec 13(1)(ib) of the Hindu Marriage Act 1955, particularly where there was no petition for restitution of conjugal rights or attempt made for reunion?

<http://www.judis.nic.in> c. Have not the Courts below, erred in refusing to grant a decree of divorce especially when the matrimonial relationship between the parties has reached the stage beyond chance for repair in view of the matrimonial incompatibility?

d. Whether the Courts below are right in dismissing the petition for divorce even though the matrimonial relationship between the parties has irretrievably broken down?

3. The above questions of law reveals that all relates to facts and circumstances of the case which were adjudicated both by the Trial Court as well as the first Appellate Court. In the absence of any acceptable substantial question of law, the second appeal is not entertainable under Section 100 of C.P.C.

4. The fact remains that the marriage between the petitioner and the respondent was solemnized on 09.07.2003 as per the Hindu Rites and <http://www.judis.nic.in> Customs. Parties lived together for about 9 years. Thereafter, the petitioner and the respondent left the matrimonial home and lived separately. The appellant husband filed a petition seeking dissolution of marriage on the ground of cruelty and desertion. The case was contested by the respondent wife. The Trial Court adjudicated the issues based on the documents and evidences made available in H.M.O.P.No.103 of 2015. The findings of the Trial Court reveals that none of the allegations relied on by the husband were established with an acceptable evidence. The findings of the Trial Court reveals that the appellant had not produced any document either to prove the ground of cruelty or desertion. In the absence of any evidence, the Trial Court arrived a conclusion that the petition is liable to be dismissed and accordingly dismissed.

5. The appellant husband filed an appeal in C.M.A.No.12 of 2018. The first Appellate Court also considered the evidences as well as the findings of the Trial Court. The findings of the first Appellate Court in paragraph No.7 reads as under:

“7) The point is answered as follows:

The petitioner in his petition stated that, <http://www.judis.nic.in> jpUkzkhd rpy ehl;fs; ,Ue;J vjph;kDjhuh; kDjhuUld; jhk;gj;jpa cwt[itj;Jf;bfhs;s tpUg;gk; ,y;yhky; ,Ue;J te;Js;shh;/ kDjhuh; jpUkzkfhpa[k; jhk;gj;jpa thH;tpy; <LglKoahky; xU gpuk;kr;rhhp nghy; ,Jehs; tiu thH;e;J tUfpwhh;/ Whether he was having sexual intercourse with the respondent or is not explained by the petitioner in this petition. He stated that, within few days of marriage the respondent was being not willing for conjugal relationship. He further stated that, he is living like a celibate till today without conjugal relationship, eventhough he was married. The second point raised by the petitioner for the desertion of the marriage is, from 14.01.2013 the respondent deserting the petitioner without any reasonable cause. The marriage between the petitioner and the respondent was solemnized on 09.07.2003. As per the petition filed by the petitioner after 10 years of marriage there was separation between the petitioner and the respondent. But, in his evidence the petition deposed that, "jpUkzj;jpw;F gpd;dpl;L vjph;kDjhuUk; ehDk; vd; tPl;oy; fztD; kidtpahf rpy khj';fs; kl;Lnk FLk;gk; elj;jp te;njhk;". He further deposed that "jpUkzkhd rpy khj';fSf;F gpwF vjph;kDjhuh; vd;Dld; jhk;gj;jpa cwt[itj;Jf;bfhs;s tpUg;gk; ,y;yhky; ,Ue;Js;shh;/ ehd;

<http://www.judis.nic.in> jpUkzkfhf xU gpuk;krhhp nghy; jhk;gj;jpa thH;tpy; <Lgl Koahky; ,Jehs;tiu thH;e;J te;Js;nsd;". But, in the cross examination he deposed that. "Tl;L Flk;gkhf 7 tUlk; me;j tPl;oy; xd;whf FoapUe;J ,Uf;fpnwd; vd;why; rhpjhd;"/ After the marriage we have lived as joint family in that house. He further deposed that, " vjph;kDjhuh; fh;g;gtjpahf mghh;rd; Mfptpl;lJ vd;why; Mkhk;. It is correct to state that, the respondent was conceived and abortion took place. " ve;j khjj;jpy; fU fiye;jJ vd;why; 4 khjk; jpUkzkfhf". The abortion was took place within 4 months of the marriage. He further deposed in the cross examination, "7 tUlk; fHpj;J c';fSf;F neuk; rhpapy;iy vd;W mnj tPl;oy; jdpf;Foj;jdk; itj;jhh;fs; vd;why; Mkhk;". It is correct to state that, after 7 years they were put us, as a separate family in that house, because of there is no good time to me. He further deposed that, in the cross examination, " c';fs; kidtp c';fSld; nrh;e;J thH jahuhf ,Ue;jhy; Tl;o bry;y jahuhf ,Uf;fpwhh;fsh> vd;why; Mkhk;." I am ready to took back my wife with me if, she is ready to live with me. A prudent man cannot believe the words of the petitioner. A couple living in one roof are not involve in sextual relationship is unbelievable. The petitioner failed to prove his case before the trial court. The <http://www.judis.nic.in> petitioner may file this application for some other reasons."

6. Based on the above findings, the first Appellate Court also dismissed the appeal confirming the judgment and decree passed by the Trial Court. This Court is of the considered opinion that the appellant has not raised any acceptable substantial question of law warranting further adjudication on the issues raised. The facts and circumstances were adjudicated both by the Trial Court as well as the first Appellate Court. Thus, re-adjudication of the facts does not arise in this case as the judgments are concurrent.

7. This being the factum, the judgment and decree dated 22.11.2018 passed in C.M.A.No.12 of 2018, confirming the judgment and decree dated 30.07.2018 passed in H.M.O.P.No.103 of 2015, stands confirmed and consequently, C.M.S.A.No.9 of 2019 stands dismissed. No costs.

09.02.2021 <http://www.judis.nic.in> Index: Yes/No Internet:Yes/No Speaking order/Non-Speaking Order gsk To

1.The Additional District (Fast Track) Court, Mettur.

2.The Sub Court, Mettur.

<http://www.judis.nic.in> S.M.SUBRAMANIAM, J.

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